



STATE OF IOWA
KIM REYNOLDS
GOVERNOR

April 16, 2026

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

Dear Mr. Secretary,

I hereby transmit:

Senate File 2463, an Act concerning the executive branch rulemaking process, including the uniform rules on agency procedure and review and regulatory readoption of rules, and including effective date provisions.

The above Senate File is hereby approved on this date.

Sincerely,

A handwritten signature in black ink that reads "Kim Reynolds". The signature is stylized with a large, flowing "K" and "R".

Kim Reynolds
Governor of Iowa

cc: Secretary of the Senate
Clerk of the House



Senate File 2463

AN ACT
CONCERNING THE EXECUTIVE BRANCH RULEMAKING PROCESS, INCLUDING
THE UNIFORM RULES ON AGENCY PROCEDURE AND REVIEW AND
REGULATORY READOPTION OF RULES, AND INCLUDING EFFECTIVE DATE
PROVISIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

DIVISION I

UNIFORM RULES ON AGENCY PROCEDURE

Section 1. Section 2B.5A, subsection 5, paragraph b, subparagraph (2), Code 2026, is amended by striking the subparagraph.

Sec. 2. Section 17A.6, subsection 1, paragraph b, Code 2026, is amended to read as follows:

b. "Publication" does not include the Iowa Code, Iowa Acts, Iowa administrative code, or Iowa court rules, ~~or uniform rules on agency procedure.~~

Sec. 3. Section 17A.24, subsection 2, Code 2026, is amended to read as follows:

2. If an agency does not have rules in effect ~~that address concerning a subject provided matter relating to a subject addressed in uniform rules on agency procedure adopted pursuant to subsection 1, and uniform rules on agency procedure addressing the subject are in effect,~~ such uniform rules

adopted pursuant to subsection 1 concerning the matter shall apply to the agency as though the agency had adopted them.

Sec. 4. RESCISSION OF ADMINISTRATIVE RULES — ONGOING APPLICABILITY.

1. The following Iowa administrative rules relating to subjects addressed by uniform rules on agency procedure adopted by the administrative rules coordinator pursuant to section 17A.24 are rescinded as of July 1, 2026:

- a. 11 IAC chs. 5 through 9.
- b. 11 IAC 4.2 through 4.13, 4.17, 4.18, and 117.20.
- c. 21 IAC chs. 2 through 5 and 8.
- d. 21 IAC 6.3 through 6.13 and 6.17.
- e. 27 IAC chs. 3 through 5 and 8.
- f. 61 IAC chs. 11 and 12.
- g. 61 IAC 2.2 through 2.13, 2.17, and 10.2.
- h. 81 IAC ch. 27.
- i. 81 IAC 24.3 through 24.13, 24.17, and 25.10.
- j. 101 IAC 2.3, 2.4, and 5.3 through 5.9.
- k. 111 IAC chs. 3 through 5 and 12.
- l. 111 IAC 13.2 through 13.12 and 13.15.
- m. 129 IAC chs. 6 and 11.
- n. 161 IAC ch. 4.
- o. 161 IAC 1.2 through 1.4, 11.2 through 11.12, 11.16, 11.17, and 15.3.
- p. 181 IAC 1.8 through 1.12.
- q. 187 IAC chs. 5, 6, 11, and 12.
- r. 187 IAC 7.3 through 7.13 and 7.16.
- s. 189 IAC chs. 4 and 20 through 23.
- t. 189 IAC 25.3 through 25.13.
- u. 191 IAC chs. 3 and 4.
- v. 191 IAC 2.1, 2.3 through 2.10, and 2.12.
- w. 193 IAC chs. 3 and 7.
- x. 193E IAC 1.4.
- y. 193F IAC 1.6 and 1.7.
- z. 199 IAC chs. 3 and 4.
- aa. 199 IAC 1.3, 1.7(1), and 1.7(3) through 1.7(8).
- ab. 201 IAC chs. 7 and 10 through 12.
- ac. 201 IAC 5.2 through 5.13 and 5.16.
- ad. 205 IAC chs. 2 through 4 and 15.

- ae. 205 IAC 5.2 through 5.11, 5.14, and 6.3.
- af. 261 IAC chs. 196 through 199.
- ag. 261 IAC 195.2 through 195.8 and 195.11.
- ah. 263 IAC chs. 2 through 6.
- ai. 265 IAC chs. 7 and 16 through 18.
- aj. 265 IAC 13.2 through 13.8, 13.11, and 15.9.
- ak. 281 IAC chs. 2 through 4 and 6.
- al. 281 IAC 5.1 through 5.3 and 5.6.
- am. 282 IAC chs. 2, 3, and 6.
- an. 282 IAC 5.1, 5.10, 5.11, 5.14, 5.15, 11.1, and 11.7
through 11.32.
- ao. 283 IAC chs. 2 through 4 and 7.
- ap. 283 IAC 6.1, 6.2, and 6.4.
- aq. 284 IAC chs. 2 through 5.
- ar. 288 IAC chs. 11 through 13.
- as. 288 IAC 3.3 through 3.13 and 3.17.
- at. 289 IAC chs. 2 through 4 and 8.
- au. 289 IAC 5.3 through 5.11 and 5.13.
- av. 301 IAC 2.4, 2.5, and 5.3 through 5.9.
- aw. 351 IAC chs. 11 through 15.
- ax. 351 IAC 2.2 through 2.13, 2.17, and 2.18.
- ay. 371 IAC 1.2(6) and 9.3 through 9.13.
- az. 441 IAC chs. 3 through 7.
- ba. 441 IAC 9.1, 9.3 through 9.11, 9.13, and 9.14.
- bb. 481 IAC chs. 2 through 4, 6, 9, 366, 367, 381, 382, and
435.
- bc. 481 IAC 5.3 through 5.14.
- bd. 486 IAC 8.3 through 8.12.
- be. 491 IAC ch. 2.
- bf. 491 IAC 1.4, 1.8, 3.3 through 3.13, and 4.20 through
4.48.
- bg. 493 IAC chs. 2, 3, 5, and 6.
- bh. 493 IAC 4.3 through 4.13.
- bi. 495 IAC chs. 19, 26, 30, 31, and 33.
- bj. 495 IAC 17.2 through 17.13 and 17.17.
- bk. 497 IAC chs. 3 through 6 and 9.
- bl. 497 IAC 7.2 through 7.11 and 7.14.
- bm. 501 IAC ch. 16.
- bn. 501 IAC 1.11 and 7.2 through 7.12.

- bo. 541 IAC chs. 5, 6, and 7.
- bp. 541 IAC 1.3, 8.2 through 8.13, and 8.16.
- bq. 543 IAC ch. 5.
- br. 545 IAC chs. 5 through 7.
- bs. 545 IAC 8.3 through 8.13 and 8.17.
- bt. 547 IAC chs. 6 through 8.
- bu. 547 IAC 2.5, 2.6, 9.3 through 9.13, and 9.17.
- bv. 561 IAC chs. 4 through 7 and 10.
- bw. 561 IAC 2.1 and 2.3 through 2.13.
- bx. 567 IAC chs. 4 through 7 and 13.
- by. 571 IAC chs. 4 through 7 and 11.
- bz. 575 IAC 1.5 and 1.8.
- ca. 591 IAC chs. 2 through 4, 16, and 17.
- cb. 601 IAC 2.3 through 2.13 and 2.18.
- cc. 605 IAC 2.1 through 2.3, 2.4(1) through 2.4(9), and 2.5.
- cd. 621 IAC chs. 2, 9, and 10.
- ce. 621 IAC 1.5, 1.9, 12.2 through 12.11, and 12.15.
- cf. 661 IAC ch. 10.
- cg. 661 IAC 80.2 through 80.11, 80.13 through 80.15, 401.101 through 401.314, and 600.5.
- ch. 681 IAC chs. 18 through 20.
- ci. 681 IAC 17.3 through 17.13 and 17.16.
- cj. 685 IAC chs. 2 through 4.
- ck. 685 IAC 15.2 through 15.8.
- cl. 701 IAC chs. 3 and 4.
- cm. 701 IAC 5.2 through 5.9, 5.11, and 5.12.
- cn. 721 IAC chs. 3 and 7 through 10.
- co. 721 IAC 5.3 through 5.13.
- cp. 741 IAC 2.4, 2.5, and 5.3 through 5.9.
- cq. 751 IAC chs. 3, 4, 16, and 18.
- cr. 751 IAC 2.1, 2.3 through 2.13, and 5.17 through 5.19.
- cs. 761 IAC chs. 4 and 10 through 13.
- ct. 761 IAC 20.4(6)"d" and 20.9(5).
- cu. 781 IAC chs. 17 through 19.
- cv. 781 IAC 2.3 through 2.13 and 2.17.
- cw. 801 IAC chs. 2 through 4 and 8.
- cx. 801 IAC 6.3 through 6.11 and 6.15.
- cy. 811 IAC chs. 2 through 4, 14, and 16.
- cz. 811 IAC 5.3 through 5.13 and 5.17.

- da. 817 IAC chs. 2, 3, 5, and 6.
- db. 821 IAC 1.5, 1.6, and 1.8.
- dc. 871 IAC chs. 2, 4, and 5.
- dd. 871 IAC 3.3 through 3.12 and 3.14.
- de. 876 IAC chs. 4, 5, 7, and 12.
- df. 876 IAC 9.3 through 9.12 and 9.14.
- dg. The preamble of any chapter and introductory paragraph of any rule that adopts by reference uniform rules on agency procedure, if the uniform rules on agency procedure adopted were published before January 1, 2024.

2. The following Iowa administrative rules relating to subjects addressed by uniform rules on agency procedure adopted by the administrative rules coordinator pursuant to section 17A.24 are rescinded as of January 1, 2027:

701 IAC chs. 6, 7, and 115.

3. As soon as practicable after the dates specified in subsections 1 and 2, the administrative code editor shall remove the language of the Iowa administrative rules referenced in subsections 1 and 2 from the Iowa administrative code.

4. Administrative rules rescinded pursuant to subsections 1 and 2 remain applicable to a request or petition for rulemaking; for a waiver of rules; for a declaratory order; for a contested case, including a request or petition that will be treated as a request or petition for a contested case; for informal settlement; for access to records; or for judicial review filed before the respective dates specified in subsections 1 and 2, for the pendency of the action.

Sec. 5. EMERGENCY RULES.

1. An agency may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", providing for additions, exceptions, or amendments to uniform rules on agency procedure adopted by the administrative rules coordinator pursuant to section 17A.24. The rules shall be effective immediately upon filing unless a later date is specified in the rules, but no later than June 30, 2026. However, rules adopted by the department of revenue or the property assessment appeal board relating to contested cases shall be effective no later than December 31, 2026. Any rules adopted in accordance with this subsection shall also be

published as a notice of intended action as provided in section 17A.4.

2. An agency may only adopt emergency rules under subsection 1 if the agency determines one or more of the following applies. The agency shall explain its determination in the preamble of the rulemaking document filed pursuant to section 17A.4, subsection 3.

a. The rule is necessary to comply with a legal obligation imposed on the agency. The agency shall include in the explanation a specific citation of the source of the legal obligation, a description of how the rule is necessary to comply with the legal obligation, and an explanation of why the existing language of the uniform rules on agency procedure adopted pursuant to section 17A.24 is insufficient to comply with the legal obligation.

b. The rule is otherwise determined to be necessary by the agency. The agency shall include in the explanation the reason the agency determined the rule to be necessary and an explanation of why the existing language of the uniform rules on agency procedure adopted pursuant to section 17A.24 is insufficient to respond to the necessity.

3. Notwithstanding section 17A.4A, a regulatory analysis shall not be required for rules adopted pursuant to subsection 1.

4. This section shall not be construed to prohibit an agency from engaging in rulemaking pursuant to chapter 17A relating to uniform rules on agency procedure adopted pursuant to section 17A.24 that is not subject to this section.

5. This section is repealed January 1, 2027.

6. The repeal of this section pursuant to subsection 5 shall not be construed to affect the validity of rules adopted under this section before the date of repeal.

Sec. 6. EFFECTIVE DATE. The following, being deemed of immediate importance, takes effect upon enactment:

The section of this division of this Act providing for emergency rulemaking and a repeal.

DIVISION II

FIVE-YEAR REVIEW AND REGULATORY READOPTION OF ADMINISTRATIVE RULES

Sec. 7. Section 17A.7, subsections 2 and 3, Code 2026, are amended to read as follows:

2. a. Beginning January 1, 2027, each agency shall conduct an ongoing and comprehensive review of all of the agency's rules. The goal of the review is the identification and elimination of all rules of the agency that are outdated, redundant, or inconsistent or incompatible with statute or its own rules or those of other agencies. Over each five-year period of time, an agency shall perform a retrospective analysis that includes a comprehensive evaluation and rigorous cost-benefit analysis of each existing chapter of rules to determine whether the benefits the rules are intended to achieve are being realized, whether those benefits justify the costs imposed by the rules, and whether there are less restrictive alternatives to accomplish those benefits.

b. The administrative rules coordinator may adopt a schedule for agencies to conduct reviews under this subsection that staggers the reviews evenly over each five-year period. If the administrative rules coordinator does so, the administrative rules coordinator shall publish the schedule on the internet site established or designated under paragraph "c".

c. When the agency completes the five-year review of the agency's rules, the agency shall provide a written summary of the results to the administrative rules coordinator and the administrative rules review committee. The administrative rules coordinator shall publish each summary on an internet site established or designated for purposes of this subsection. The summary shall include all of the following for each chapter of rules:

~~a.~~ (1) The intended benefits of the rules and if the benefits are being achieved.

~~b.~~ (2) The costs imposed by the rules and if the costs are justified by the benefits identified in ~~paragraph "a"~~ subparagraph (1).

~~c.~~ (3) Less restrictive alternatives to the rules and an analysis of how other states regulate the activities addressed by the chapter.

3. a. Each chapter of rules is rescinded five years after the date on which the most recent regulatory readoption of

the chapter as a whole became effective. A chapter rescinded in this manner ceases to be effective as of the date of rescission. The date of rescission of a chapter under this subsection shall not be altered if such date falls on a Saturday, Sunday, or holiday.

b. Before or after such rescission under paragraph "a" occurs, the agency that adopted the chapter may adopt complete a regulatory readoption of the chapter anew after completing a retrospective analysis as described in subsection 2. Such adoption A regulatory readoption shall be subject to the rulemaking process under this chapter, including but not limited to sections 17A.4, 17A.4A, and 17A.5. An agency adopting completing a regulatory readoption of a chapter anew as described in this subsection shall do so from a zero base. Adoption A regulatory readoption of a chapter anew as described in this subsection shall not include notation in a rulemaking document published in the Iowa administrative bulletin all amendments to the chapter found necessary or appropriate by the agency during the agency's comprehensive review and retroactive analysis of the chapter pursuant to subsection 2 that have not yet been adopted by the agency. A regulatory readoption of a chapter shall include notations of additions to or deletions from the language of the prior chapter in the item statements in any rulemaking document published in the Iowa administrative bulletin. The agency shall indicate in the preamble of the rulemaking document that the document is part of the regulatory readoption of the chapter. For purposes of this subsection, "zero base" means adoption of a chapter anew without merely adopting the prior language of the chapter and without any presumption in favor of utilizing retaining the prior language when the chapter is adopted anew of the chapter.

b. The effective date of adoption, amendment, or rescission of individual rules or portions of rules in a chapter, and the date of any changes to the chapter or rules or portions of rules in the chapter pursuant to section 2B.13, shall not be considered when determining the effective date of the chapter as a whole for purposes of this subsection. The date of rescission of a chapter under this subsection shall not be altered if such date falls on a Saturday, Sunday, or holiday.

c. (1) If a chapter has been rescinded under this subsection, the agency that adopted the chapter shall notify the administrative code editor in writing of the rescission. The administrative rules coordinator may notify the administrative code editor in writing on behalf of the agency.

(2) As soon as practicable after receiving such notification, the administrative code editor shall publish notice of the rescission in the Iowa administrative bulletin and, no sooner than two weeks after such publication, remove the chapter from the Iowa administrative code.

d. When a regulatory readoption of a chapter of rules becoming effective as a whole is published in the Iowa administrative code, the administrative code editor shall include the next rescission date of the chapter, as provided in this subsection, with the chapter.

e. ~~(1) For a chapter of rules that most recently became effective as a whole prior to January 1, 2023, the effective date of the chapter shall be deemed January 1, 2023, for purposes of this subsection. For a chapter that most recently became effective as a whole on or after January 1, 2023, the date of rescission pursuant to this subsection shall be based on the most recent effective date of the chapter as a whole. Notwithstanding paragraph "a":~~

(a) The date of rescission of a chapter that becomes effective as a whole from January 1, 2023, through January 1, 2028, both dates inclusive, shall be deemed to be five years after the date on which the chapter most recently became effective as a whole.

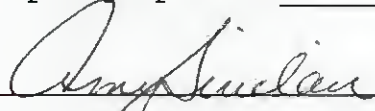
(b) The date of rescission of a chapter that was in effect prior to January 1, 2023, and did not become effective as a whole from January 1, 2023, through January 1, 2028, both dates inclusive, shall be deemed to be January 1, 2028.

(2) The effective date of adoption, amendment, or rescission of individual rules or portions of rules in a chapter, and the date of any changes to the chapter or rules or portions of rules in the chapter pursuant to section 2B.13, shall not be considered when determining the effective date of the chapter as a whole for purposes of this paragraph.

(3) The administrative code editor shall include the next

rescission date of a chapter under this paragraph with the chapter in lieu of the date provided in paragraph "d".

f. The administrative rules review committee may grant ~~a six-month~~ an extension of up to one hundred eighty days of the date of rescission of a chapter of rules provided in this subsection upon written request by the agency that adopted the chapter. The request shall be submitted to the administrative rules review committee by the agency at least ~~thirty~~ thirty-five days before the date of rescission with a copy provided to the administrative code editor. The request shall include an explanation of the agency's reasoning for seeking an extension and any other information the agency finds appropriate. If the administrative rules review committee approves the request, the administrative code editor shall update the rescission date included with the chapter pursuant to paragraph "d" or "e".



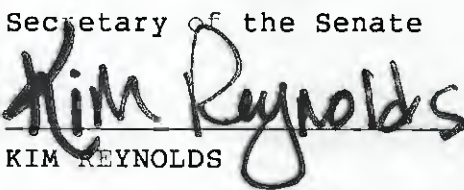
AMY SINCLAIR
President of the Senate



PAT GRASSLEY
Speaker of the House

I hereby certify that this bill originated in the Senate and is known as Senate File 2463, Ninety-first General Assembly.



W. CHARLES SMITHSON
Secretary of the Senate


KIM REYNOLDS
Governor

Approved April 16th, 2026